

Multiple Choice

1. **Answer:** D

Options: A) Principles are legislative, policies are precedents.; B) Principles describe rights, policies describe duties.; C) Principles are democratic, policies are autocratic.; D) Principles describe rights, policies describe goals.

Note: Dworkin's distinction highlights that principles serve to protect individual rights and impose constraints on governmental power, while policies are oriented towards achieving societal goals or objectives.

2. **Answer:** B

Options: A) They are acts that States perform as practice in the context of custom; B) They are acts creating unilateral legal obligations to the acting State; C) Unilateral acts are simply political acts of State devoid of any legal effect; D) Unilateral acts are those that State perform in order to be bound by a treaty

Note: The correct answer is accurate because 'unilateral acts' refer to actions taken by a State that create binding legal obligations without the need for agreement from other parties, highlighting the autonomy and legal authority of the acting State in constitutional law.

3. **Answer:** D

Options: A) maximizing individual freedom; B) providing a basis for compromise; C) keeping the peace; D) promoting the principles of the free enterprise system

Note: The correct answer is "promoting the principles of the free enterprise system" because while law does establish a framework for economic activity, its primary functions include maintaining order, protecting rights, and resolving disputes rather than specifically promoting any particular economic system.

4. **Answer:** B

Options: A) Piracy jure gentium is subject to flag State jurisdiction; B) Piracy jure gentium is subject to universal jurisdiction; C) Piracy jure gentium is subject to port State jurisdiction; D) Piracy jure gentium is subject to nationality-based jurisdiction

Note: Piracy jure gentium is considered a crime that affects the international community as a whole, thus allowing any state to exercise universal jurisdiction over it, irrespective of where the crime occurred or the nationality of the perpetrators or victims.

5. **Answer:** C

Options: A) Custom, treaties and judicial decisions; B) Custom, general principles of law and theory; C) Treaties, custom and general principles of law; D) Treaties, custom and General Assembly Resolutions

Note: The correct answer identifies treaties, customary law, and general principles of law as the three primary formal sources of international law, as established by Article

38 of the International Court of Justice Statute, which outlines how international legal obligations are created and recognized.

True / False

6. **Answer:** True

Options: A) True; B) False

Note: The Sociological School of jurisprudence posits that law is not merely a set of rules but a tool for promoting social justice and addressing societal needs, thereby aligning legal frameworks with the advancement of specific social goals.

7. **Answer:** False

Options: A) True; B) False

Note: The prohibition of torture was not the first rule of jus cogens recognized by the International Court of Justice; rather, the Court has acknowledged other norms, such as the prohibition of genocide, as part of jus cogens prior to addressing torture.

8. **Answer:** False

Options: A) True; B) False

Note: The statement is false because law and morality often intersect, with legal systems frequently reflecting societal moral values and ethical principles, which can influence legislation and judicial decisions.

9. **Answer:** True

Options: A) True; B) False

Note: Kelsen's pure theory of law posits that law should be analyzed independently as a normative system, distinct from other social phenomena such as religion, ethics, sociology, and history, thereby emphasizing its separation from these domains.

10. **Answer:** False

Options: A) True; B) False

Note: The Analytical School of jurisprudence recognizes that while law can be analyzed through logical reasoning and rules, it is also influenced by social contexts and realities, making the statement false.

Long Form Response

11. **Answer:** In constitutional law, consent can act as a circumstance that precludes the wrongfulness of state conduct when it is valid and within the scope of what was agreed upon. Valid consent must be informed, voluntary, and given by individuals or groups with the legal capacity to consent. This means that the parties involved must fully understand the implications of their consent and agree to it freely, without coercion. Additionally, state actions must remain within the limits set by the consent; any deviation from these limits can render the conduct wrongful, regardless of the initial consent. Therefore, while consent can shield the state from claims of wrongdoing, it

is essential that the conditions for valid consent are met to ensure its effectiveness in constitutional contexts.

Note: correct because it outlines that valid consent in constitutional law must be informed, voluntary, and given by those with legal capacity, while also emphasizing the necessity for state conduct to adhere to the limits established by such consent to avoid wrongful actions.

12. **Answer:** The Marxist critique of individual rights within the context of constitutional law posits that these rights are fundamentally tied to the capitalist system, serving primarily to protect private property and individual interests rather than collective welfare. In a capitalist society, individual rights often prioritize the interests of the wealthy, reinforcing class divisions and economic inequality. Marxists argue that such rights are unnecessary in a socialist society, where the focus shifts from individualism to collective ownership and communal well-being. In this context, constitutional law would instead emphasize social rights that promote equality and social justice, reflecting the values of a socialist framework. Therefore, from a Marxist perspective, individual rights are seen as a construct of capitalism that hinders true social progress.
- Note:* The answer correctly identifies that Marxism critiques individual rights as instruments of capitalism that prioritize private property and individual wealth over collective welfare, thereby questioning their relevance in a socialist framework that aims for equality and communal ownership.